

DEPARTMENT OF VETERANS AFFAIRS

**Brand Name Justification and Approval (J&A) for
Other Than Full and Open Competition**

Acquisition Plan Action ID: 36C256-26-AP-2867

1. Contracting Activity:

Veterans' Health Administration (VHA), NCO 16. The proposed procurement is for the install activation of an already purchased Trane Rauk Split system at the Central Arkansas Veterans Healthcare System in North Little Rock, AR.

2. Nature and/or Description of the Action Being Processed:

This station has already purchased a Trane Rauk Split System and needs to have it activated in the Trane BAS Building Automation System; this will be awarded as a firm-fixed price contract. This justification is for, other than full and open competition, for the procurement of this proprietary software upgrades. The use of a particular brand name for the items listed below accommodate standardization of these items throughout the facility.

- a. HVAC Controls/BAS monitoring
Trane Software

3. Description of Supplies/Services Required to Meet the Agency's Needs:

This procurement is for the install activation of an already purchased Trane Rauk Split system at the Central Arkansas Veterans Healthcare System in North Little Rock, AR. With already in service building automation systems and the system already on station the Department of Veterans Affairs has determined it is not able to accept equal or alternate items.

4. Statutory Authority Permitting Other than Full and Open Competition:

- (X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
- () Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
- () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
- () International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
- () Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
- () National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;
- () Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

These items have been standardized throughout the (VAMC),. Installing a different manufacturers' systems will create significant duplication in costs for the facility, and in most cases the equipment will not function properly. The specific impact for not using the brand name items are listed below:

a. HVAC Controls/BAS Monitoring

Impact: An incompatible system may require installation of new “front-end” and remote workstations as well as new software and programming. Additionally, installation of components that match the existing building automation system minimizes maintenance costs and bench stock requirements. It is necessary to match the existing system to ensure there are no interface problems, impacts to patient safety and familiarity of the product to the staff and maintenance personnel. This is the only way to ensure complete compatibility and that the campus will not duplicate HVAC control systems on the VA campus.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:**

In accordance with the Competition in Contracting Act (CICA), the components listed above are identified as brand name only. This Justification for Other Than Full and Open Competition will be posted to Contract Opportunities with the solicitation.

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:**

The duplication of alternative items or systems would be cost prohibitive for the Department of Veterans Affairs.

8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:**

The market research for the equipment was conducted and prepared by the COR and shared with the CO for further review. This determination is posted to SAM to solicit the industry for alternative options and identify alternative authorized vendors if they exist.

9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:**

The station has verified that the brand name items identified are only available for a proprietary source. New components must be able to tie into an existing and operational system including use of software. Converting the software system tie-ins to another manufacturer’s system to accommodate portions of the facility complex would be extremely disruptive to operations and prohibitively expensive.

- a. **Contracting Officer Certification:** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

ANDREW MISFELDT Digitally signed by ANDREW
MISFELDT
Date: 2026.03.29 20:21:35 -05'00'

Contracting Officer
NCO 16